

RAJESHWARI HARIHARAN: MEDIA, ENTERTAINMENT & IPR LAWYER, DELHI HIGH COURT

The multi-million dollar media and entertainment industry is a typical example of an industry that runs entirely on content created by human mind, be it in the form of songs, lyrics, stories, video, photos or otherwise. Artists and musicians in the ancient times were patronised by kings; with that era gone, it is regime of Intellectual Property that they may lean on. Intellectual property provides protection for useful products, tangible or intangible created by human mind. Intellectual property roughly falls in 4 categories – patents, trademark, copyright and designs. Copyright protects and covers all kinds of artistic, literary, dramatic and cinematographic works. One of the main problems plaguing this industry is counterfeits and large scale piracy which can be controlled only through routine and regular legal actions.

Yet another emerging front in this industry is the invasion of personality rights or celebrity rights – the right of a individual to prevent illegal commercial use of his image or his personality in any manner without his consent. Take for example the case of Titan Industries Vs Ramkumar Jewellers wherein the brand Titan was endorsed by Amitabh Bachchan and Jaya Bachchan and the defendant copied Titan's hoardings including the endorsements by the celebrities which was restrained by the High Court of Delhi thus upholding personality rights of the actors.

Thus, the need of the hour is awareness in the entertainment industry and taking of active steps to protect their rights and prevent illegal use thereof sending out a strong signal that their rights are not up for grabs.



SHWETA SANGTANI: ADVOCATE-TURNED- ENTREPRENEUR RIVING SEX-TECH

Shweta Sangtani, a seasoned lawyer with a 12-year background in litigation, arbitration, dispute resolution, and legal drafting, is making waves beyond the courtroom. Graduating with a BSL LLB from ILS Law College in 2010, Sangtani's early career saw her advocating in various capacities, including independent practice at the Bombay High Court. However, her professional journey took an unconventional turn when she co-founded Sangya Project (www.sangyaproject.com) alongside partners Tanisha RK and Aashish Mehrotra. Recognizing the limitations and censorship surrounding sex education for minors, Sangya Project was started as an Instagram page and gained traction rapidly, amassing over 30k followers. It soon evolved, receiving requests for guest posts and fostering candid discussions on sex, pleasure, and sexuality.

Upon recognizing the need for greater quality control, higher warranty periods, greater access and affordability by cutting down on international shipping costs, Sangtani played a pivotal role in turning Sangya Project into India's first manufacturer of intimate massagers. The queer-owned Sex Tech company launched their first locally made design in September 2023, with a one-year warranty unlike the industry standard for white-labelled products. With discreet packaging and an emphasis on quality assurance, the brand offers a diverse range of locally manufactured products, including vibrators, supplements, plugs, strap-ons, and kink wear. Despite initial challenges with manufacturing, banking, and payment processors, Sangya Project experienced remarkable growth, achieving 5x growth in sales and revenue within a year. With a gross margin of 60%, the company anticipates reaching 70% next year. Sangtani's passion for community service dates back to her student days when she engaged with an organization dedicated to spreading awareness about HIV/AIDS and its prevention. This early experience laid the foundation for her commitment to holistic well-being and community education. Today, Shweta Sangtani stands at the intersection of law, wellness, and education, embodying the belief that a legal professional can catalyze positive change in diverse and meaningful ways.

